

STEVENS POND

FEE HELD BY BTA/BOLT, Inc.

DECEMBER 10, 1998

The land surrounding Stevens Pond is the only place in Boxford where Black Spruce grows naturally. BTA/BOLT purchased this 22-acre parcel on 12/10/98. There is frontage on Ipswich Road and access from Batchelder Road. The property abuts Four Mile Village. Stevens Pond is a great pond, which means it is more than 10 acres and protected. Great ponds must allow public access. The parcel that is owned by BTA/BOLT primarily contains Oak and White Pine, in addition to the Black Spruce.

BTA/BOLT Inc. PROPERTY INSPECTION REPORT

1. Property name: **Stevens Pond**
2. Location [street address]:
Near the intersection of Ipswich Road and Georgetown Road; access also from Batchelder Road, Boxford, MA.
3. Date of inspection: **8/2007**
4. Size in acres: **22 acres**
5. Does the property have a Conservation Restriction on it, if so, who holds it?
No
6. Owner name and address:
BTA/BOLT, Inc., P.O. Box 95, Boxford, MA 01921
7. Date property was acquired: **12/10/1998** Purchase or donation? **Purchase**
8. Describe the details of your inspection [where you walked, etc.]:

This is the only piece of property where Black Spruce grows naturally in Boxford. We began our walk on Batchelder Road and walked the property as far as the thick undergrowth would allow. The property entrance here abuts two residential homes. There are many White Pines and Oaks, and the plot is densely wooded. We also parked at the Stevens Pond lot and walked the perimeter of the pond, as far as the wet land plants would allow us.

9. Present use of property: **Some fishing and parking to look at the view; also a hydrant for the Boxford Fire Department**

10. Note any possible violations or encroachments

None – the parking area is frequented by workmen having lunch, so it needs to be closely monitored for trash. No trash was present on this visit. Parking lot will be improved by Town.

Monitor comments/Intended Follow-up

11. Describe any rare or unusual plant or animal life or sign thereof:

None, with the exception of the Black Spruce. There were numerous water lilies on the pond as well.

12. Additional remarks [particularly as to the present condition of the property]:

The property was in good shape.

13. Names of monitoring team members:

Nick Shrewsbury, Mary Ellen Iorio

14. Time spent on property: **1 hour**

15. Inspection team leader:

Nick Shrewsbury
[printed name]

Nick Shrewsbury (via email)
[signature]

HELLER, LEVIN, SEKSAY & OUELLETTE, P.C.

ATTORNEYS AT LAW

ONE CENTER PLAZA, SUITE 350
BOSTON, MASSACHUSETTS 02108

TELEPHONE (617) 723-5151

TELECOPIER (617) 742-6882

PERSONAL & CONFIDENTIAL**VIA TELECOPIER**

c/o (617) 434-2695

October 7, 1997

Ms. Nancy Merrill
Chairman
BTA/BOLT
c/o 20 Cross Road
Boxford, MA 01921**RE: NOTICE OF MORTGAGE FORECLOSURE SALE:****PROPERTY: Parcel 22A on Ipswich Road and Batchelder Road, Boxford,
in the County of Essex, Massachusetts**

Dear Ms. Merrill:

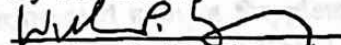
As you requested, enclosed is a copy of (i) the Mortgagee's Sale of Real Estate Notice, (ii) the plan recorded with the Essex South Registry of Deeds at Book 212, Plan 47 and (iii) the Municipal Liens Certificate dated September 17, 1997 provided to me from the Town of Boxford all in connection with the foreclosure auction sale of the above-referenced property, on Thursday, the 9th day of October, 1997, at 10:00 A.M. to take place at the premises known as Parcel 22A on Ipswich Road and Batchelder Road, Boxford, Essex County, Massachusetts at that portion of the premises adjacent to Ipswich Road.

If you have any questions in connection with the above, please do not hesitate to contact me. However, please be advised that much of the information provided herein was supplied to us by others and/or was found in the public records. Therefore, these documents are provided for information only, and no representation as to the truth or accuracy of the information contained therein is made. You should make your own conclusions as to the reliability and relevancy of all information contained herein.

Sincerely,

Beverly National Bank

By its Attorney


William P. Lopriore, Jr.

WPL/km

Enclosure

cc: Ms. Deborah Rosser
Richard J. Levin, Esq.

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MORTGAGEE'S SALE OF REAL ESTATE

By virtue and in execution of the Power of Sale contained in a certain mortgage given by Thomas E. Cargill, Jr. to Beverly National Bank, a National Banking Association, dated July 20, 1995 and recorded with Essex South District Registry of Deeds, Book 13110, Page 356 of which mortgage the undersigned is the present holder, for breach of the conditions of said mortgage and for the purpose of foreclosing the same will be sold at Public Auction at 10:00 A.M. on Thursday, the 9th day of October, 1997, on the mortgaged premises (at that portion of the mortgaged premises adjacent to Ipswich Road) now known as Parcel 22A on Ipswich Road and Batchelder Road, Boxford, Massachusetts all and singular the premises described in said Mortgage. To wit:

A vacant parcel of land on Ipswich Road and Batchelder Road, in Boxford, Essex County, Massachusetts, being shown as Parcel 22A on plan entitled "Plan of Land in Boxford, Mass., property of Wild Meadow Trust", dated July 1, 1986 by Hancock Survey, Associates, Inc., which plan is recorded in Essex South District Registry of Deeds in Plan Book 212 as Plan 47, to which plan reference is made for particular description of said premises.

Said Parcel 22A contains 22 acres of land, more or less, according to said plan.

Said premises are conveyed with a right to use Batchelder Road as shown on said plan for all purposes for which public ways may be used in the Town of Boxford, but reserving to the grantors the fee in said way.

Said premises are conveyed subject to easements, restrictions and agreements of record and easements as shown on said plans referred to herein, and the following, all of which are recorded in said Deeds: the terms and conditions of a Boundary Line Agreement, Book 6704, Page 203; all matters set forth in a Decree of Confirmation from the Commonwealth of Massachusetts Land Court Department of the Trial Court, Book 6943, Page 342; Notice of Special Permit from the Town of Boxford Board of Appeals, Book 6851, Page 735; Rules and Regulations relative to Conservancy District shown on said plan; a Supplementary Covenant, Book 6704, Page 196; a Final Action letter from the Boxford Planning Board, Book 6704, Page 199; Common Scheme Restrictions, Book 7155, Page 484; Easement to New England Telephone and Telegraph Company, Book 6924, Page 246; Easement to Haverhill Gas Company, Book 6937, Page 571; Easement to Massachusetts Electric Company, Book 6950, Page 598 and Book 6959, Page 433.

For Mortgagor's title see deed recorded at Essex South District Registry of Deeds in Book

11907, Page 221.

Said premises will be sold subject to as above and to all restrictions, easements, improvements, attachments, outstanding tax titles, municipal or public taxes, assessments, liens or claims in the nature of liens, and existing encumbrances of record, if there be any, and all encumbrances of record created prior to said mortgage.

Said premises will also be sold subject to all leases and tenancies having priority over said mortgage, to tenancies or occupation by persons on the premises now and at the time of said auction which tenancies or occupation are subject to said mortgage, to rights or claims in personal property installed by tenants or former tenants now located on the premises, and also to all laws and ordinances including, but not limited to, all building and zoning laws and ordinances.

Ten Thousand and 00/100 (\$10,000.00) Dollars will be required to be paid in cash or bank treasurer's or cashier's check by the purchaser at the time and place of sale as earnest money to be held by the mortgagee as liquidated damages for any breach by the buyer. The balance is to be paid in cash or by certified or bank treasurer's or cashier's check within Thirty Two (32) days thereafter at the offices of Heller, Levin, Seksay & Ouellette P.C., One Center Plaza, Boston, Massachusetts 02108. Upon the delivery of such balance, the Deed shall be delivered to the Buyer. The successful bidder shall be required to sign a Memorandum of Terms and Conditions of Sale at the Auction Sale.

In the event that the winning bidder should fail to perform by tendering the remaining purchase monies at the time and place provided, time being of the essence, the Mortgagee reserves the right to sell the property to the second highest bidder at this sale for the price bid

3

by the second highest bidder at this sale if said second highest bidder is willing to purchase same during the time for performance otherwise provided or any extension thereof. In the event that the Mortgagee does not sell the property to the highest bidder or to the second highest bidder, the Mortgagee shall be deemed to have bid an amount equal to that bid by the second highest bidder and may, at the Mortgagee's option, sell the property to itself for said second highest bid.

Other terms, if any, to be announced at the sale.

Beverly National Bank
Present holder of said mortgage
240 Cabot Street
Beverly, Massachusetts 01915
Deborah A. Rosser
Vice-President
Telephone (978) 922-2100

William P. Lopriore, Jr.
Attorney for Mortgagee
Heller, Levin, Saksay & Ouellette P.C.
One Center Plaza
Boston, MA 02108
Telephone (617) 723-5151

TOWN OF BOXFORD
MUNICIPAL LIEN CERTIFICATE
CERTIFICATE NUMBER 3374

PAGE 1
MUTX168 8.4

11/17/97
4:55

ARCEL: 19-02-20

LOCATION: IPSWICH RD

CURRENT OWNER:
CARGILL JR THOMAS E
73 GEORGETOWN RD
BOXFORD MA 01921

CURRENT STATUS:
ACRES : 22.00
LAND VALUATION : 22,000
BUILDING VALUATION : 0
EXEMPTIONS : 0
TAXABLE VALUATION : 22,000

DEED DATE: 05/26/93 BOOK: 11907 PAGE: 221

INTEREST DATE: 09/17/97

YEAR TYPE	DUE DATE	BILLED	PRIN DUE	INT/COST	TOTAL DUE
1995 RE TAX		290.40	.00		
TOTAL 1995		290.40	.00		
1996 RE TAX		295.90	.00		
TOTAL 1996		295.90	.00		
1997 RE TAX		301.40	227.42	24.82	252.24
TOTAL 1997		301.40	227.42	24.82	252.24
1998 RE 1ST PRELIM EST 08/01/97		78.37	78.37	1.41	79.78
1998 RE 2ND PRELIM EST 11/03/97		78.36	78.36		78.36
TOTAL 1998		156.73	156.73	1.41	158.14
GRAND TOTALS		1,044.43	384.15	26.23	410.38

REQUESTOR:
Heller, Levin, Seksay & Ouellette

September 17, 1997

I certify from available information that listed above are all taxes, assessment and charges now due that constitute liens as of the date, of this certificate on the parcel specified in your application dated: September 9, 1997

FY 98 Preliminary Tax is generally based on 52% of prior year's tax.
FY 97 Tax rate was \$13.70 FY 97 Real Estate Tax on the parcel was:

\$301.40
1st Qtr. Prelim. Tax due 8/1/97 2nd Qtr. Prelim. Tax due: 11/3/97
Unpaid betterments/special assessments not yet added: NONE
UNPAID UTILITY CHARGES: NONE OTHER UNPAID CHARGES: NONE

I have no knowledge of any other amount that constitutes a lien.

Alan J. Benson - Collector of Taxes - Town of Boxford

FAX (978) 745-8972

DONALD J. SCUTIERE
ATTORNEY AT LAW
81 WASHINGTON STREET
SALEM, MASSACHUSETTS 01970

TEL. (978) 745-2161

December 10, 1998

Mr. George Horner, Treasurer
BTA/BOLT, Inc.
20 Cross Road
Boxford, MA 01921

Dear George:

Enclosed is a copy of a deed which was recorded today. This is a conveyance of land, formerly owned by Tom Cargill, at Batchelder and Ipswich Roads, from the Beverly National Bank to BTA/BOLT, Inc.

I did not discuss past-due real estate taxes with Jim Sterio, the Bank's attorney. I'll leave this issue to your discretion. In the meantime, I would appreciate it if you would reimburse me for the \$25.00 recording fee.

Thanks.

Very truly yours,



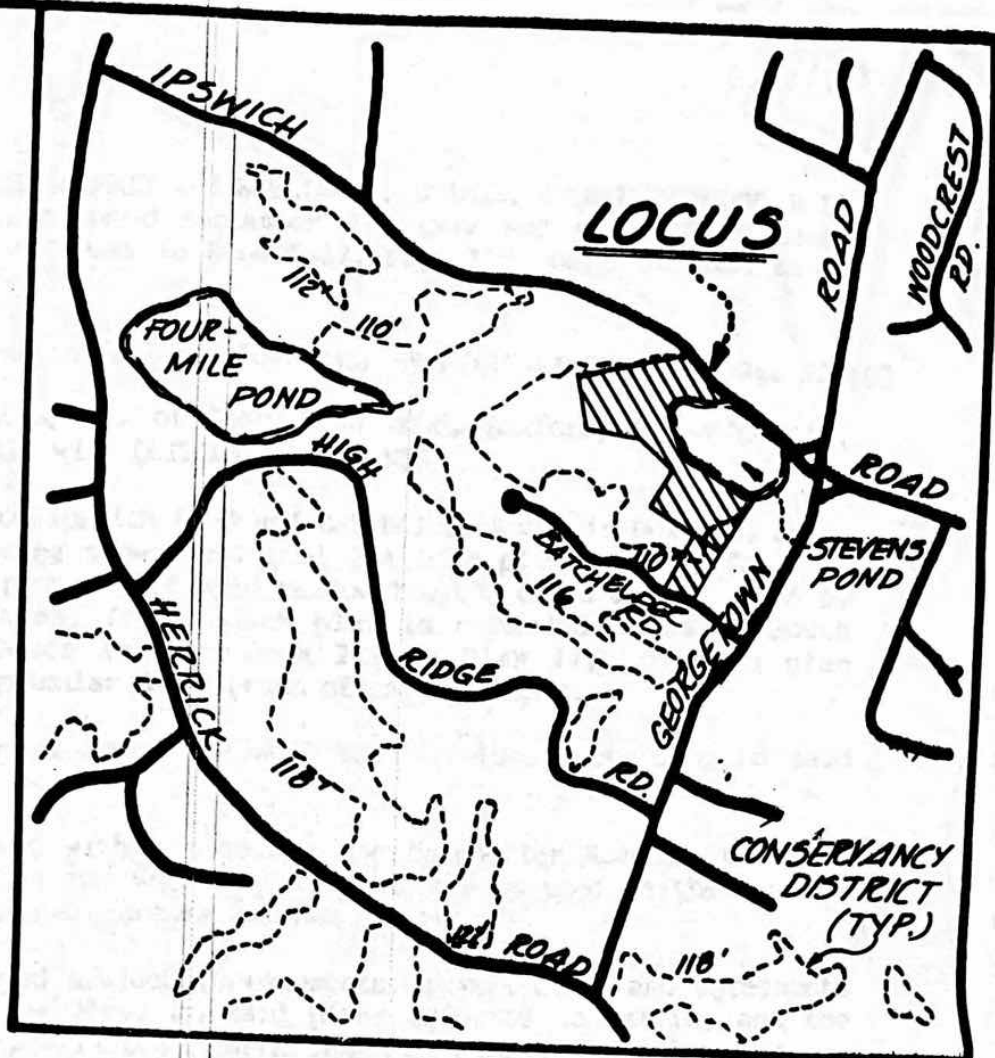
Donald J. Scutiere

DJS/jas
encl.

cc: Judy Gore, President

BATCH/IPSW

47
212



LOCUS MAP

SCALE: 1" = 1500'

ZONING DISTRICT: R ~ A

ASSESSORS MAP: 19 & 24, BLK. 2 & 4, LOT 20 & 28.

Copy
8/21/08

We, CHARLES B. WILLS, ROGER HARRIS and WILLIAM E. DORMAN, TRUSTEES OF THE WILD MEADOW TRUST, U/D of Trust dated September 27, 1979 and recorded in Essex South District Registry of Deeds in Book 6637, Page 410, of Lynnfield, Essex County, Massachusetts,

for consideration paid, and in full consideration of FIFTY FIVE HUNDRED AND NO/100 (\$5,500.00) DOLLARS

grant to THOMAS E. CARGILL, JR. of Georgetown Road, Boxford, Massachusetts, Essex County, Massachusetts with QUITCLAIM COVENANTS

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For title, see deed recorded in said Deeds in Book 6637, Page 416.

EXECUTED as a sealed instrument this 19th day of SEPTEMBER, 1986.

Witness

Charles B. Wills, Jr.
CHARLES B. WILLS, TRUSTEE

Witness

Roger Harris, Jr.
ROGER HARRIS, TRUSTEE

William E. Dorman, Trustee
WILLIAM E. DORMAN, TRUSTEE

PROPERTY ADDRESS: Parcel 22A on Ipswich Road and Batchelder Road, Boxford, Massachusetts

COMMONWEALTH OF MASSACHUSETTS
RECORDS & DEEDS

SEP 19 1986 12.54